

Labor Law 1426 H In the name of God, the Most Gracious, the Most Merciful

Royal Decree No. M/51 dated 23/8/1426 H With the aid of God Almighty, We, Abdullah bin Abdulaziz Al Saud, King of the Kingdom of Saudi Arabia, Based on Article (Seventy) of the Basic Law of Governance, issued by Royal Order No. (A/90) dated 27/8/1412 H. And based on Article (Twenty) of the Law of the Council of Ministers, issued by Royal Order No. (A/13) dated 3/3/1414 H. And based on Article (Eighteen) of the Law of the Shura Council, issued by Royal Order No. (A/91) dated 27/8/1412 H. And after reviewing Shura Council Resolution No. (48/48) dated 29/10/1425 H. And after reviewing Council of Ministers Resolution No. (219) dated 22/8/1426 H. We have decreed the following: First: The approval of the Labor Law, in the accompanying text. Second: His Highness the Deputy Prime Minister and the Ministers shall, each within his own jurisdiction, implement this decree of ours.

Abdullah bin Abdulaziz

In the name of God, the Most Gracious, the Most Merciful

Council of Ministers Resolution No. 219 dated 22/8/1426 H The Council of Ministers, After reviewing the transaction received from the Bureau of the Presidency of the Council of Ministers under No. 56032/B dated 24/11/1425 H, which includes the letter of His Excellency the Minister of Labor No. 58/S S dated 1/11/1420 H, with the draft Labor Law attached thereto. And after reviewing the Labor and Workmen Law, issued by Royal Decree No. (M/21) dated 6/9/1389 H. And after reviewing Minutes No. (244) dated 24/5/1422 H, No. (202) dated 27/5/1426 H, and No. (259) dated 26/6/1426 H, prepared at the Bureau of Experts. And after considering Shura Council Resolution No. (48/48) dated 29/10/1425 H. And after reviewing the recommendation of the General Committee of the Council of Ministers No. (390) dated 24/7/1426 H. Resolves To approve the Labor Law, in the accompanying text. A draft Royal Decree has been prepared to that effect, the text of which is attached hereto.

Prime Minister

Labor Law

Part One: Definitions and General Provisions

Chapter One: Definitions

Article One:

This Law shall be called the Labor Law.

Article Two

Article Amendments The following terms and phrases, wherever they appear in this Law, shall have the meanings assigned to them, unless the context requires otherwise: **The Ministry:** The Ministry of Labor. **The Minister:** The Minister of Labor. **Labor Office:** The administrative body entrusted with labor affairs within a geographical area specified by a decision of the Minister.

Employer: Any natural person for whose benefit a worker works under his management or supervision in return for a wage, even if he is not under his direct oversight. **Adolescent:** A person who has completed the age of fifteen but has not yet reached the age of eighteen.

Work: The effort exerted in all human activities in implementation of a work contract (written or unwritten), regardless of their nature or type, be it industrial, commercial, agricultural, technical, or otherwise, whether physical or mental. **Original Work:** For individuals: the subject of their usual activity. For establishments: the work for which the establishment was created and which is stipulated in its articles of association, concession contract (if it is a concession company), or commercial register. **Temporary Work:** Work that is by its nature part of the employer's activities and whose completion requires a specific period, or is focused on a specific task that ends upon its completion, and in both cases does not exceed ninety days. **Casual Work:** Work that is not by its nature part of the employer's usual activities, and its execution does not take more than ninety days. **Seasonal Work:** Work that takes place during recognized periodic seasons. **Part-time Work:** Work performed by a non-full-time worker for an employer for a number of hours less than half the usual daily working hours at the establishment, whether this worker performs his hours daily or on some days of the week. **Continuous Service:** The uninterrupted service of a worker with the same employer or his legal successor, from the date of commencement of service. Service shall be deemed continuous in the following cases:

1. Statutorily prescribed leaves and holidays.
2. The period of interruption for taking examinations as provided for in this Law.
3. Cases of the worker's absence from work without pay for a period not exceeding twenty non-consecutive days during the work year. **Basic Wage:** All that is given to the worker in return for his work, by virtue of a written or unwritten work contract, regardless of the type of wage or method of its payment, in addition to periodic increments. **Actual Wage:** The basic wage plus all other due increments decided for the worker in return for effort

exerted at work, or risks he is exposed to in the performance of his work, or those decided for the worker in return for work under the work contract or work organization regulation. This includes:

4. Commission, or percentage of sales, or percentage of profits, paid in return for what he markets, produces, or collects, or for what he achieves in increasing or improving production.
5. Allowances the worker is entitled to for energy he exerts or risks he is exposed to in the performance of his work.
6. Increments that may be granted according to the standard of living or to meet family burdens. **Grant or Bonus:** What the employer gives to the worker, and what is paid to him as a reward for his honesty, or efficiency, and the like, if this grant or bonus is stipulated in the work contract, or the establishment's work organization regulation, or if it has become customary to grant it, to the extent that workers consider it part of the wage and not a donation. **In-kind Benefits:** What the employer commits to provide to the worker in return for his work, by stipulating it in the work contract or in the work organization regulation. It is valued at a maximum equivalent to the basic wage for two months for each year, unless it is valued in the work contract or work organization regulation at more than that. **Wage:** The actual wage. **Establishment:** Any project managed by a natural or legal person that employs one or more workers in return for a wage of any kind. **Month:** Thirty days, unless otherwise stipulated in the work contract or in the work organization regulation. **The Regulations:** The Implementing Regulations of this Law.

Article Three:

Article Amendments Work is a right of the citizen. No one else may exercise it except after fulfilling the conditions stipulated in this Law. Citizens are equal in the right to work.

Article Four:

The employer and the worker shall, when applying the provisions of this Law, adhere to the requirements of the provisions of Islamic Sharia.

Article Five:

Article Amendments The provisions of this Law shall apply to:

1. Any contract under which any person undertakes to work for an employer and under his management or supervision in return for a wage.
2. Government workers and workers of public bodies and institutions, including those who work in pastures or agriculture.
3. Workers of charitable institutions.
4. Workers in agricultural and pastoral establishments that employ ten or more workers.
5. Workers in agricultural establishments that process their own products.

6. Workers who permanently operate or repair mechanical machinery necessary for agriculture.
7. Qualification and training contracts with persons other than the employer's workers, within the limits of the special provisions stipulated in this Law.
8. Part-time workers, within the limits related to occupational safety and health, work injuries, and as decided by the Minister.

Article Six:

The provisions concerning duties and disciplinary rules, maximum working hours, daily and weekly rest periods, overtime work, official holidays, safety and occupational health rules, and work injuries and compensation therefor, and as decided by the Minister, shall apply to the casual, seasonal, and temporary worker.

Article Seven:

Article Amendments The following shall be exempted from the application of the provisions of this Law:

1. Members of the employer's family, namely his spouse, ascendants, and descendants who work in the establishment which employs no one else.
2. Domestic helpers and the like.
3. Seamen who work on ships with a tonnage of less than five hundred tons.
4. Agricultural workers other than the categories stipulated in Article Five of this Law.
5. Non-Saudi workers who come to perform a specific task for a period not exceeding two months.
6. Players and coaches of sports clubs and federations. The Ministry shall, in coordination with the competent authorities, issue special regulations for domestic helpers and the like to govern their relationship with their employers, and to define the rights and duties of each party, and shall submit them to the Council of Ministers.

Article Eight:

Any condition that contravenes the provisions of this Law shall be null and void, and any waiver or reconciliation concerning the rights arising for the worker under this Law during the validity of the work contract shall be null and void, unless it is more beneficial to the worker.

Article Nine:

The Arabic language is the language required to be used in data, records, files, work contracts, and other matters stipulated in this Law or in any decision issued in implementation of its provisions, as well as the instructions issued by the employer to his workers. If the employer uses a foreign language alongside the Arabic language in any of the aforementioned cases, the Arabic text shall be the one adopted.

Article Ten:

All periods and deadlines stipulated in this Law shall be calculated according to the Hijri calendar, unless otherwise stipulated in the work contract or the work organization regulation.

Article Eleven:

Article Amendments

1. If an employer entrusts any natural or legal person with performing any of his original work, or part thereof, the latter must grant his workers all the rights and benefits that the original employer grants to his own workers, and they shall be jointly and severally liable for them.
2. If there are multiple employers, they shall be jointly and severally liable for fulfilling the obligations arising from this Law and the work contracts.

Article Twelve:

Article Amendments The employer and the worker must be aware of the provisions of the Labor Law in all its contents, so that each may be informed of his position and knowledgeable of his rights and obligations. An employer who employs ten or more workers must submit to the Ministry, within one year from the date this Law comes into force or the date of reaching the quorum, a work organization regulation that includes the internal work provisions. This regulation must be comprehensive of the rules for organizing work and related provisions, including provisions related to benefits and special provisions for violations and disciplinary penalties, in a manner that does not conflict with the provisions of this Law.

Article Thirteen:

Article Amendments The Ministry shall approve the work organization regulation, and any amendment thereto, within sixty days from the date of its submission to the Ministry. If that period elapses without approval or objection being issued, the regulation shall become effective as of the expiration of that period. The employer must announce the regulation after its approval in a conspicuous place in the establishment or by any other means that ensures the workers' knowledge of it.

Article Fourteen:

Article Amendments The Minister shall issue, by his decision, a model or models for work organization regulations to guide employers.

Article Fifteen:

Upon commencement of work in any establishment, the employer must notify the competent Labor Office in writing of the following data:

1. The name of the establishment, its type, its headquarters, the address to which correspondence should be sent, and any information that would facilitate contact with the establishment.
2. The economic activity he is licensed to practice, stating the commercial registration or license number and date, its issuing authority, and attaching a copy thereof.
3. The number of workers to be employed in the establishment.
4. The name of the responsible manager of the establishment.
5. Any other data required by the Ministry.

Article Sixteen:

1. If the employer is unable to conduct the business himself, he must appoint a responsible person to represent him at the workplace. In the case of multiple partners or managers in the establishment, one of them residing at the workplace shall be named to represent the employer and shall be responsible for any violation of the provisions of this Law.
2. The employer must notify the competent Labor Office in writing of the name of the partner or manager, and in the event of his change, he must notify the Office of the name of the new partner or manager within a maximum of seven days from the latter's assumption of his duties.
3. If there is no person appointed as a responsible manager for the establishment, or if the appointed person does not assume his duties, then the person who actually performs the duties of the manager or the employer himself shall be considered the responsible manager of the establishment. In all cases, the liability of the employer shall remain primary.

Article Seventeen:

The employer must keep at the workplace the records, statements, and files whose nature and the data they must contain are specified in the Regulations. He must also place in a conspicuous place at the worksite a schedule of working hours, rest periods, the weekly rest day, and the start and end times of each shift in the case of shift work.

Article Eighteen:

If the ownership of the establishment is transferred to a new owner, or a change occurs in its legal form through merger, division, or otherwise, the work contracts shall remain in force in both cases, and the service shall be deemed continuous. As for the workers' rights arising from the period prior to this change, such as wages, or an end-of-service award presumed due on the date of transfer of ownership, or other rights, the successor and the predecessor shall be jointly and severally liable for them. In the case of the transfer of individual establishments for any reason, the predecessor and successor may agree on the transfer of all prior workers' rights to the new owner with the written consent of the worker. If the worker does not consent, he may request the termination of his contract and receive his entitlements from the predecessor.

Article Nineteen:

The amounts due to the worker or his heirs under this Law shall be considered first-class privileged debts. For their collection, the worker and his heirs shall have a lien on all the employer's property. In the event of the employer's bankruptcy or the liquidation of his establishment, the said amounts shall be recorded as privileged debts, and the worker shall be paid an advance payment equivalent to one month's wage, before the payment of any other expense, including judicial expenses and bankruptcy or liquidation expenses.

Article Twenty:

Neither the employer nor the worker may perform any act that would constitute a misuse of the provisions of this Law or the decisions and regulations issued in implementation of its provisions. Nor may either of them perform any act that would pressure the freedom of the other or the freedom of other workers or employers to achieve any interest or point of view they adopt that is inconsistent with the freedom of work or the jurisdiction of the competent authority for settling disputes.

Article Twenty-One:

The Minister shall, for the purpose of implementing the provisions of this Law, coordinate with the relevant authorities whenever necessary.

Part Two: Organization of Recruitment Operations

Article Twenty-Two:

Article Amendments The Ministry shall provide employment units, free of charge, in suitable locations for employers and workers, which shall undertake the following:

1. Assisting workers in obtaining suitable jobs and assisting employers in finding suitable workers.
2. Collecting necessary information about the labor market and its development and analyzing it to make it available to the various public and private bodies concerned with economic and social planning affairs.
3. Carrying out the following duties:

3/1- Registering job seekers. 3/2- Obtaining data on vacant jobs from employers. 3/3- Referring workers' applications to suitable vacant jobs. 3/4- Providing advice and assistance to job seekers regarding the vocational qualification, training, or retraining necessary to obtain vacant jobs. 3/5- Other matters decided by the Ministry.

Article Twenty-Three

Article Amendments Every citizen of working age who is able and willing to work may request to have his name registered with the employment unit, stating his date of birth, qualifications, previous work, preferences, and address.

Article Twenty-Four

Article Amendments The Regulations shall specify the rules and procedures for the work of employment units, the forms for records, notices, and papers used in their work, as well as the tables for classifying professions according to the approved professional classification, which shall be the basis for organizing employment operations.

Article Twenty-Five

Article Amendments Every employer shall send the competent Labor Office the following:

1. A statement of vacant and newly created jobs, their types, locations, the wages allocated for them, and the conditions required to fill them, within a period not exceeding fifteen days from the date they become vacant or are created.
2. A notification of the action taken regarding the employment of the citizen nominated by the employment unit within seven days from the date of receiving the nomination letter.
3. A statement with the names of his workers, their jobs, professions, wages, ages, nationalities, and the work permit numbers and dates for non-Saudis, and other data specified by the Regulations.
4. A report on the status, conditions, and nature of the work, and the expected shortages and surpluses in jobs during the year following the date of the report.
5. The data referred to in paragraphs 3 and 4 of this Article shall be sent during the month of Muharram of each year.

Article Twenty-Six

1. All establishments, in their various activities and regardless of the number of workers therein, shall work to attract and employ Saudis, provide means for their continued employment, and afford them a suitable opportunity to prove their suitability for the work by guiding, training, and qualifying them for the jobs assigned to them.
2. The percentage of Saudi workers employed by the employer shall not be less than 75% of his total workers. The Minister may, in case of non-availability of technical competencies or academic qualifications, or the inability to fill positions with citizens, temporarily reduce this percentage.

Article Twenty-Seven

Article Amendments The Minister may, when necessary, require employers—in certain activities and professions and in certain regions and governorates—not to employ workers until they are

registered with the employment units, under the conditions and terms he specifies by a decision from him.

Article Twenty-Eight

Article Amendments Every employer who employs twenty-five or more workers, and the nature of his work enables him to employ professionally qualified persons with disabilities, shall employ at least 4% of his total number of workers from professionally qualified persons with disabilities, whether through nomination by employment units or otherwise. He shall also send to the competent Labor Office a statement of the number of jobs and positions occupied by professionally qualified persons with disabilities, and the wage of each.

Article Twenty-Nine

If a worker sustains a work injury resulting in a decrease in his usual abilities that does not prevent him from performing a job other than his previous one, the employer at whose workplace the worker's injury occurred shall employ him in a suitable job at the wage specified for that job. This shall not prejudice any compensation he is entitled to for his injury.

Article Thirty

Article Amendments No natural or legal person may engage in the activity of employing Saudis or the activity of recruiting workers unless licensed to do so by the Ministry. The Regulations shall specify the tasks of each of these two activities, the conditions for granting and renewing the license for each, the duties and prohibitions, the rules for non-renewal or cancellation of the license, the consequences thereof, and any other necessary conditions and controls to ensure their proper operation.

Article Thirty-One

Article Amendments Saudi workers whose employment was facilitated by the offices and workers recruited by them on behalf of employers shall be considered workers of the employer, and they are bound to him by a direct contractual relationship.

Part Three: Employment of Non-Saudis

Article Thirty-Two

Recruitment for the purpose of work is not permitted without the approval of the Ministry.

Article Thirty-Three

A non-Saudi may not perform work, nor may he be permitted to do so, except after obtaining a work permit from the Ministry in accordance with the form prepared for this purpose. The conditions for granting the permit are as follows:

1. The worker must have entered the country legally and be authorized to work.
2. He must possess the professional competencies or academic qualifications that the country needs, and which are not possessed by citizens, or the number of citizens possessing them is insufficient to meet the need, or he must be from the category of ordinary workers that the country needs.
3. He must be under contract with an employer and under his responsibility. The word (Work) in this Article means any industrial, commercial, agricultural, financial, or other work, and any service, including domestic service.

Article Thirty-Four

The aforementioned work permit does not substitute for any other permit or license required by another authority for the practice of the work or profession.

Article Thirty-Five

Article Amendments Before renewing a work permit, it must be verified that there are no Saudi job seekers who meet the required qualifications and wish to perform the same job.

Article Thirty-Six

The Minister shall, by a decision from him, specify the professions and jobs that non-Saudis are prohibited from engaging in.

Article Thirty-Seven

Article Amendments The employment contract of a non-Saudi must be written and for a specified duration. If the contract does not state its duration, the duration of the work permit shall be considered the duration of the contract.

Article Thirty-Eight

An employer may not employ a worker in a profession other than the one stated in his work permit, and the worker is prohibited from engaging in a profession other than his own before taking the statutory procedures to change the profession.

Article Thirty-Nine

Article Amendments

1. An employer may not, without following the prescribed statutory rules and procedures, allow his worker to work for others, and a worker may not work for another employer. Similarly, an employer may not employ another's worker.
2. An employer may not allow his worker to work for his own account, and a worker may not work for his own account.

Article Forty

Article Amendments

1. The employer shall bear the fees for recruiting the non-Saudi worker, the fees for the residence permit (Iqama) and work permit and their renewal, any fines resulting from their delay, the fees for change of profession, exit and re-entry, and the return ticket for the worker to his home country after the end of the relationship between the two parties.
2. The worker shall bear the costs of his return to his country if he is unfit for work or if he wishes to return without a legitimate reason.
3. The employer shall bear the fees for transferring the services of a worker who wishes to transfer his services to him.
4. The employer is obligated to cover the expenses of preparing the worker's body and transporting it to the location where the contract was concluded or from which the worker was recruited, unless he is buried with the consent of his relatives within the Kingdom. The employer is exempted if the General Organization for Social Insurance is obligated to do so.

Article Forty-One

The Regulations shall specify the conditions, controls, and procedures for recruitment, transfer of services, and change of profession.

Part Four: Training and Qualification

Article Forty-Two

Article Amendments Every employer shall prepare his Saudi workers and improve their level in technical, administrative, professional, and other fields, with the aim of gradually replacing non-Saudis. He shall maintain a register in which he records the names of the Saudi workers who have replaced non-Saudis, in accordance with the conditions and rules specified by the Regulations.

Article Forty-Three

Article Amendments Without prejudice to the provisions of concession agreements and other agreements regarding special conditions and rules for training, qualification, education, and scholarships, every employer who employs fifty or more workers shall train at least 6% of his total number of Saudi workers annually on his business activities. The Minister may raise this percentage in certain establishments which he shall specify by a decision from him.

Article Forty-Four

Article Amendments The training program must include the rules and conditions to be followed in training, its duration, number of hours, theoretical and practical training programs, the method

of testing, and the certificates to be awarded in this regard. The Regulations shall specify the general standards and rules to be followed in this respect to raise the level of the worker's performance in terms of skill and productivity.

Article Forty-Five

A qualification and training contract is a contract under which an employer undertakes to qualify or train a person to prepare him for a specific profession.

Article Forty-Six

Article Amendments The qualification or training contract must be in writing, and it must specify the type of profession for which the training is contracted, the duration of the training and its successive stages, and the amount of the allowance to be given to the trainee at each stage, provided that its determination shall in no case be on a piece-rate or production basis.

Article Forty-Seven

Article Amendments The Minister may require establishments—which he shall specify by decisions from him—to accept a specific number or percentage of students and graduates of colleges, institutes, and centers for the purpose of training and completing practical experience, in accordance with the conditions, terms, durations, and trainee allowances specified in an agreement concluded between the Ministry and the management of the concerned establishment.

Article Forty-Eight

Article Amendments The employer may terminate the qualification or training contract if he perceives the trainee's inability or lack of capacity to complete the training programs usefully. The trainee, his guardian, or his custodian has the same right. The party wishing to terminate the contract must notify the other party at least one week before the date of cessation of training. The employer may require the trainee to work for him after the completion of the training period for a period not exceeding twice that period or one year, whichever is longer.

Article Forty-Nine

The provisions of this Law concerning annual leaves, official holidays, maximum working hours, daily rest periods and weekly rest, occupational safety and health rules, and work injuries and their conditions, and whatever the Minister decides, shall apply to the qualification and training contract.

Part Five: Labor Relations

Article Fifty

An employment contract is a contract concluded between an employer and a worker, whereby the latter undertakes to work under the management or supervision of the employer for a wage.

Article Fifty-One

Article Amendments The employment contract shall be written in two copies, one for each party. The contract shall be deemed to exist even if it is not in writing. In this case, the worker alone may prove the contract and the rights arising from it by all means of proof. Either party may request that the contract be put in writing at any time. For government and public institution workers, the appointment decision or order issued by the competent authority shall take the place of the contract.

Article Fifty-Two

Article Amendments The employment contract shall essentially contain: the name and location of the employer, the name and nationality of the worker, and what is necessary to prove his identity, the agreed-upon wage, the type and place of work, the date of joining, and its duration if it is for a specified term, taking into account the provisions of Article (Thirty-Seven) of this Law.

Article Fifty-Three

Article Amendments If the worker is subject to a probationary period, this must be explicitly stated and clearly defined in the employment contract, such that it does not exceed ninety days. The Eid al-Fitr and Eid al-Adha holidays and sick leave are not included in the calculation of the probationary period. Each party has the right to terminate the contract during this period unless the contract contains a provision giving the right of termination to one of them.

Article Fifty-Four

Article Amendments A worker may not be placed on probation more than once with the same employer. As an exception, the parties to the contract may agree to subject the worker to a second probationary period not exceeding ninety days, provided that it is in another profession or another job. If the contract is terminated during the probationary period, neither party is entitled to compensation, nor is the worker entitled to an end-of-service award for that period.

Article Fifty-Five

Article Amendments

1. A fixed-term employment contract shall terminate upon the expiry of its term. If both parties continue to execute it, the contract shall be considered renewed for an indefinite

term, taking into account the provisions of Article (Thirty-Seven) of this Law with respect to non-Saudis.

2. If the fixed-term contract includes a clause providing for its renewal for a similar period or for a specified period, the contract shall be renewed for the agreed-upon period. If the renewal occurs twice consecutively, or if the duration of the original contract with the renewal period reaches three years, whichever is less, and the parties continue to execute it, the contract shall be converted into an indefinite-term contract.

Article Fifty-Six

In all cases where the contract is renewed for a specified period, the period for which the contract is renewed shall be considered an extension of the original period in determining the worker's rights for which the period of service is included in the calculation.

Article Fifty-Seven

If the contract is for the performance of a specific work, it shall terminate upon the completion of the agreed-upon work.

Article Fifty-Eight

Article Amendments An employer may not transfer a worker from his original place of work to another place that requires a change in his place of residence, if such a transfer would cause serious harm to the worker and there is no legitimate reason necessitated by the nature of the work.

Article Fifty-Nine

A worker with a monthly wage may not be transferred to the category of daily, weekly, piece-rate, or hourly workers, unless the worker agrees to this in writing, and without prejudice to the rights the worker has acquired during the period he spent on a monthly wage.

Article Sixty

Without prejudice to the provisions of Article (Thirty-Eight) of this Law, a worker may not be assigned work that is fundamentally different from the agreed-upon work without his written consent, except in cases of necessity that may be required by temporary circumstances, and for a period not exceeding thirty days in a year.

Article Sixty-One

Article Amendments In addition to the duties stipulated in this Law and the regulations and decisions issued for its implementation, the employer must:

1. Refrain from forced labor, and not withhold the worker's wage or part of it without a judicial basis, treat his workers with due respect, and refrain from any word or deed that infringes upon their dignity and religion.
2. Give workers the necessary time to exercise their rights stipulated in this Law without deduction from wages for this time. He may regulate the exercise of this right in a manner that does not disrupt the course of work.
3. Facilitate for the employees of the competent authorities every task related to the application of the provisions of this Law.

Article Sixty-Two

If the worker reports to perform his work at the specified time, or shows that he is ready to perform his work at that time, and is prevented from working only by a cause attributable to the employer, he shall be entitled to the wage for the period during which he does not work.

Article Sixty-Three

The employer, his representative, or any person with authority over the workers must prevent the entry of any substance prohibited by Sharia into the workplaces. The penalties prescribed in this Law shall be applied to anyone in whose possession it is found or who has used it, without prejudice to the Sharia penalties.

Article Sixty-Four

Article Amendments Upon the termination of the employment contract, the employer is obligated to do the following:

1. To give the worker, upon his request, a certificate of service, free of charge, indicating the date he joined the service, the date of termination of his relationship with the work he performed, his profession, and the amount of his last wage. This certificate must be reasoned if it contains anything that might harm the worker's reputation or reduce his employment opportunities.
2. To return to the worker all certificates and documents he has deposited with him.

Article Sixty-Five

In addition to the duties stipulated in this Law and the regulations and decisions issued for its implementation, the worker must:

1. Perform the work according to the principles of the profession and the instructions of the employer, provided that these instructions do not contradict the contract, the law, or public morals, and that their execution does not expose him to danger.
2. Take sufficient care of the machinery, tools, equipment, and raw materials owned by the employer that are placed at his disposal or in his custody, and return to the employer the unconsumed materials.
3. Adhere to good conduct and morals during work.

4. Provide all aid and assistance, without stipulating additional pay, in cases of disasters and dangers that threaten the safety of the workplace or the persons working therein.
5. Undergo, at the employer's request, medical examinations that the employer wishes to conduct on him before or during employment, to verify that he is free from occupational or communicable diseases.
6. Keep confidential the technical, commercial, and industrial secrets of the materials he produces, or in whose production he has directly or indirectly contributed, and all professional secrets related to the work or the establishment, the disclosure of which would harm the employer's interests.

Article Sixty-Six

The disciplinary penalties that an employer may impose on a worker are:

1. Warning.
2. Fine.
3. Deprivation of or postponement of the allowance for a period not exceeding one year, when it is established by the employer.
4. Postponement of promotion for a period not exceeding one year, when it is established by the employer.
5. Suspension from work with deprivation of pay.
6. Dismissal from work in the cases prescribed in the Law.

Article Sixty-Seven

An employer may not impose on a worker a penalty not provided for in this Law or in the work organization regulations.

Article Sixty-Eight

The penalty may not be increased in the case of a repeated offense if one hundred and eighty days have passed since the previous offense from the date the worker was notified of the penalty imposed on him for that offense.

Article Sixty-Nine

A worker may not be accused of an offense that was discovered more than thirty days ago, and a disciplinary penalty may not be imposed more than thirty days after the date of completion of the investigation into the offense and its establishment against the worker.

Article Seventy

A disciplinary penalty may not be imposed on a worker for an act committed outside the workplace unless it is related to the work, the employer, or the responsible manager. Nor may a fine exceeding the wage of five days be imposed on a worker for a single offense, nor may more than one penalty be imposed for a single offense, nor may more than the wage of five days in a

single month be deducted from his wage in payment of fines imposed on him, nor may the period of his suspension from work without pay exceed five days in a month.

Article Seventy-One

A disciplinary penalty may not be imposed on a worker except after notifying him in writing of the allegations against him, questioning him, investigating his defense, and documenting this in a report to be placed in his personal file. The questioning may be oral for minor offenses for which the penalty imposed on the perpetrator does not exceed a warning or a fine by deducting no more than one day's wage, provided that this is documented in the report.

Article Seventy-Two

Article Amendments The worker must be notified in writing of the decision to impose the penalty on him. If he refuses to receive it or is absent, the notification shall be sent by registered mail to his address shown in his file. The worker has the right to object to the decision to impose the penalty on him within fifteen days—excluding official holidays—from the date he is notified of the final decision to impose the penalty. The objection shall be submitted to the Commission for the Settlement of Labor Disputes, which must issue its decision within thirty days from the date the objection is registered with it.

Article Seventy-Three

Article Amendments Fines imposed on workers must be recorded in a special register, stating the worker's name, the amount of his wage, the amount of the fine, the reason for its imposition, and the date thereof. The fines may not be disposed of except for what benefits the workers of the establishment, after obtaining the approval of the Ministry.

Article Seventy-Four

Article Amendments The employment contract shall terminate in any of the following cases:

1. If both parties agree to terminate it, provided that the worker's consent is in writing.
2. If the period specified in the contract expires—unless the contract has been explicitly renewed in accordance with the provisions of this Law—in which case it continues until its term.
3. At the will of either party in indefinite-term contracts.
4. The worker reaching the age of retirement, which is sixty years for male workers and fifty-five years for female workers, unless the parties agree to continue working after this age. The retirement age may be reduced in cases of early retirement as provided for in the work organization regulations. If the employment contract is for a specified term and its duration extends beyond the retirement age, the contract shall terminate upon the expiry of its term.
5. Force majeure. The provision of paragraph 4 of this Article shall be effective two years from the date this Law comes into force.

Article Seventy-Five

Article Amendments If the contract is for an indefinite term, either party may terminate it for a legitimate reason which must be stated in a written notice addressed to the other party before the termination by a period of not less than thirty days if the worker's wage is paid monthly, and not less than fifteen days for others.

Article Seventy-Six

Article Amendments If the party terminating the contract does not observe the period mentioned in Article Seventy-Five of this Law, he shall be required to pay the other party compensation equivalent to the worker's wage for the notice period, or the remainder thereof. The worker's last wage shall be the basis for estimating the compensation for workers who are paid on a time basis. As for workers who are paid on another basis, the provisions of Article Ninety-Six of this Law shall be taken into account in the estimation.

Article Seventy-Seven

Article Amendments If the contract is terminated for an unlawful reason, the party who suffered damage from this termination shall have the right to compensation to be assessed by the Commission for the Settlement of Labor Disputes, taking into account the material and moral damages, actual and potential, and the circumstances of the termination.

Article Seventy-Eight

Article Amendments A worker who is dismissed from his job without a legitimate reason may request to be reinstated. Such requests shall be considered in accordance with the provisions of this Law and the regulations for proceedings before the Commissions for the Settlement of Labor Disputes.

Article Seventy-Nine

The employment contract does not terminate upon the death of the employer, unless his personality was a consideration in the conclusion of the contract. However, it does terminate upon the death of the worker or his inability to perform his work, as evidenced by a medical certificate approved by the authorized health authorities or by the authorized physician appointed by the employer.

(Article Seventy-Nine bis)

- This article was added by Royal Decree No. (M/44) dated 08/02/1446 H., and reads as follows: "1. A submitted resignation request shall be considered accepted if (thirty) days have passed since its submission without a response from the employer. The employer may postpone the acceptance of the resignation request for a period not exceeding (sixty) days if the interest of the work so requires, and in accordance with a written, reasoned explanation provided to the worker, provided that the postponement of

acceptance occurs before the end of the thirty-day period referred to in this paragraph. The period of postponement of acceptance shall be calculated from the date the aforementioned explanation is provided to the worker.

2. The employment contract shall terminate by resignation from the date of its acceptance by the employer, or the passing of the thirty-day period referred to in paragraph (1) of this Article without a response from the employer, or the passing of the period of postponement of acceptance referred to in paragraph (1) of this Article.
3. The worker may withdraw the resignation request within a period not exceeding (seven) days from the date of its submission, unless the employer has accepted it before the withdrawal.
4. It is not valid to specify a deferred date for the resignation in the resignation request.
5. The employment contract shall be considered valid during the period of the resignation request, and both parties to the contract are obligated to fulfill all obligations arising from it during that period.
6. A worker whose contract has been terminated by resignation is entitled to all his rights established under this Law."

Article Eighty

Article Amendments An employer may not terminate the contract without an award, notice, or compensation except in the following cases, and provided that he gives the worker the opportunity to state his reasons for opposing the termination:

1. If the worker assaults the employer, the responsible manager, or any of his superiors during or by reason of the work.
2. If the worker fails to perform his essential obligations arising from the work contract, fails to obey legitimate orders, or deliberately fails to observe the instructions—announced by the employer in a visible place—concerning the safety of the work and workers, despite being warned in writing.
3. If it is proven that he has engaged in bad conduct or committed an act affecting honor or integrity.
4. If the worker intentionally commits any act or default intended to cause a material loss to the employer, provided that the employer reports the incident to the competent authorities within twenty-four hours from the time of his knowledge of its occurrence.
5. If it is proven that the worker resorted to forgery to obtain the job.
6. If the worker is appointed on probation.
7. If the worker is absent without a legitimate reason for more than twenty days in one year, or for more than ten consecutive days, provided that the termination is preceded by a written warning from the employer to the worker after his absence of ten days in the first case, and his absence of five days in the second case.
8. If it is proven that he has unlawfully exploited his job position to obtain personal results and gains.
9. If it is proven that the worker has disclosed industrial or commercial secrets related to the work in which he is employed.

Article Eighty-One

A worker has the right to leave the work without notice, while retaining all his statutory rights, in any of the following cases:

1. If the employer fails to fulfill his essential contractual or statutory obligations towards the worker.
2. If it is proven that the employer or his representative has committed fraud against him at the time of contracting with respect to the work conditions and circumstances.
3. If the employer assigns him, without his consent, to work that is substantially different from the work agreed upon, and contrary to what is decided by Article Sixty of this Law.
4. If an assault involving violence or immoral conduct is committed by the employer, a member of his family, or the responsible manager against the worker or a member of his family.
5. If the treatment by the employer or the responsible manager is characterized by cruelty, injustice, or insult.
6. If there is a serious danger in the workplace that threatens the safety or health of the worker, provided that the employer was aware of its existence and did not take measures to indicate its removal.
7. If the employer or his representative, through his actions and particularly through his unfair treatment or his violation of the terms of the contract, has caused the worker to appear as the one who has terminated the contract.

Article Eighty-Two

An employer may not terminate the service of a worker due to illness before he has exhausted the periods specified for leave as provided for in this Law, and the worker has the right to request that his annual leave be connected to his sick leave.

Article Eighty-Three

Article Amendments If the work assigned to the worker allows him to know the employer's clients or to have access to his business secrets, the employer may stipulate that the worker shall not, after the termination of the contract, compete with him or disclose his secrets. For this condition to be valid, it must be in writing and specific in terms of time, place, and type of work, to the extent necessary to protect the legitimate interests of the employer. In all cases, the duration of this agreement shall not exceed two years from the date of the termination of the relationship between the two parties.

Article Eighty-Four

If the work relationship ends, the employer must pay the worker an award for his period of service, calculated on the basis of half a month's wage for each of the first five years, and a full month's wage for each of the following years. The last wage shall be taken as the basis for calculating the award, and the worker is entitled to an award for the parts of the year in proportion to the time he spent at work.

Article Eighty-Five

If the termination of the work relationship is due to the worker's resignation, he is entitled in this case to one-third of the award after a service of not less than two consecutive years and not more than five years, and to two-thirds if his period of service exceeds five consecutive years but does not reach ten years, and to the full award if his period of service reaches ten years or more.

Article Eighty-Six

Notwithstanding the provision of Article (Eight) of this Law, it may be agreed that all or some of the amounts of commissions or percentages of sales prices and similar elements of the wage paid to the worker, which are by their nature subject to increase and decrease, shall not be included in the wage on the basis of which the end-of-service award is settled.

Article Eighty-Seven

Notwithstanding what is stated in Article Eighty-Five of this Law, the full award is due if the worker leaves the work as a result of a force majeure beyond his control. A female worker is also entitled to it if she terminates the contract within six months from the date of her marriage contract or three months from the date of her childbirth.

Article Eighty-Eight

If the worker's service ends, the employer must pay his wage and settle his rights within a week at most from the date of the end of the contractual relationship. However, if the worker is the one who terminated the contract, the employer must settle all his rights within a period not exceeding two weeks. The employer may deduct any debt due to him because of the work from the amounts due to the worker.

Chapter Six: Work Conditions and Circumstances

Article Eighty-Nine

The Council of Ministers may, when necessary and upon the proposal of the Minister, set a minimum wage.

Article Ninety

Article Amendments

1. The worker's wage and any amount due to him must be paid in the official currency of the country. The wage must also be paid during working hours and at the workplace in accordance with the following provisions: 1/1. Daily-rated workers shall be paid their wages at least once a week. 1/2. Monthly-rated workers shall be paid their wages once a

month. 1/3. If the work is performed by the piece and requires a period of more than two weeks, the worker must receive a payment each week commensurate with the work he has completed, and the remainder of the wage shall be paid in full within the week following the delivery of the work. 1/4. In cases other than those mentioned, workers shall be paid their wages at least once a week.

2. Wages may be paid through accredited banks in the Kingdom if the worker agrees to it, provided that their due date does not exceed the dates specified above.

Article Ninety-One

1. If a worker causes the loss, damage, or destruction of machines or products owned by the employer or in his custody, and this was due to the worker's fault or his violation of the employer's instructions and was not the result of a third party's fault or force majeure, the employer may deduct from the worker's wage the amount necessary for repair or for restoring the situation to what it was, provided that what is deducted for this purpose does not exceed the wage of five days in each month. The employer has the right to file a grievance when necessary, by requesting more than that if the worker has other assets from which it can be recovered. The worker may file a grievance against what was attributed to him or against the employer's assessment of the compensation before the Commission for the Settlement of Labor Disputes. If it rules that the employer is not entitled to recourse against the worker for what he deducted from him, or rules for a lesser amount, the employer must return to the worker what was unlawfully deducted from him within seven days from the date of the ruling.
2. The grievance of either party shall be within fifteen working days, otherwise the right to it shall be forfeited. The period for the grievance begins for the employer from the date of discovering the incident, and for the worker from the date the employer informs him of it.

Article Ninety-Two

No amount may be deducted from a worker's wages in respect of private rights without his written consent, except in the following cases:

1. Repayment of the employer's loans, provided that what is deducted from the worker in this case does not exceed 10% of his wage.
2. Social insurance contributions, and any other contributions due from the worker and prescribed by law.
3. The worker's contributions to a savings fund and loans due to the fund.
4. Installments for any project undertaken by the employer to build housing for the purpose of transferring ownership to the workers or any other benefit.
5. Fines imposed on the worker for violations he commits, as well as the amount deducted from him for what he has damaged.
6. Recovery of a debt in enforcement of any judicial ruling, provided that what is deducted monthly for this purpose does not exceed a quarter of the worker's due wage, unless the ruling provides otherwise. The alimony debt shall be recovered first, then the debt for food, clothing, and housing before other debts.

Article Ninety-Three

In all cases, the percentage of deducted amounts may not exceed half of the worker's due wage, unless it is proven to the Commission for the Settlement of Labor Disputes that an increase in the deduction beyond that percentage is possible, or it is proven to it that the worker needs more than half of his wage. In the latter case, the worker shall not be given more than three-quarters of his wage, whatever the case may be.

Article Ninety-Four

1. If any amount is deducted from the worker's wage for a reason other than those provided for in this Law without his written consent, or if the employer delays payment of the worker's wage on its legally specified due date without a legitimate justification, the worker, his representative, or the director of the competent Labor Office may submit a request to the Commission for the Settlement of Labor Disputes to order the employer to return to the worker what he has unlawfully deducted, or to pay him his overdue wages.
2. The said Commission may, if it is proven to it that the employer has deducted the said amounts or delayed payment of the wage without justification, impose on him a fine not exceeding double what was deducted from the worker's wage or double the value of the overdue wage.

Article Ninety-Five

1. If the work contract or the work organization regulation does not specify the wage that the employer is obliged to pay, the wage estimated for work of the same type in the establishment shall be taken, if it exists. Otherwise, the wage shall be estimated according to the custom of the profession in the area where the work is performed. If there is no custom, the Commission for the Settlement of Labor Disputes shall estimate the wage in accordance with the requirements of justice.
2. This shall also be followed in determining the type of service the worker is required to perform, and in determining its extent.

Article Ninety-Six

1. If the worker's wage is determined on the basis of piece-rate or production, the average wage he received for his actual working days in the last year of his service shall be used for the purpose of calculating any of the rights prescribed for him under this Law.
2. If the entire wage consists of commissions or percentages of sales or the like, which are by their nature subject to increase or decrease, the average daily wage shall be calculated on the basis of what the worker received for the actual working days divided by them.

Article Ninety-Seven

If a worker is arrested or detained by the competent authorities in cases related to or because of the work, the employer must continue to pay 50% of the wage to the worker until his case is

decided, provided that the period of arrest or detention does not exceed one hundred and eighty days. If it exceeds that, the employer is not obliged to pay any part of the wage for the excess period. If the worker is acquitted or the investigation is closed due to lack of evidence of what was attributed to him or due to its incorrectness, the employer must return to the worker what was previously deducted from his wage. However, if he is convicted, what was paid to him shall not be recovered unless the judgment provides otherwise.

Article Ninety-Eight

A worker may not be actually employed for more than eight hours in one day if the employer adopts the daily standard, or more than forty-eight hours in a week if the employer adopts the weekly standard. The actual working hours during the month of Ramadan for Muslims shall be reduced, so that they do not exceed six hours in a day, or thirty-six hours in a week.

Article Ninety-Nine

The working hours stipulated in Article Ninety-Eight of this Law may be increased to nine hours in one day for certain categories of workers, or in certain industries and jobs where the worker is not continuously employed. They may also be reduced to seven hours in one day for certain categories of workers or in certain hazardous or harmful industries and jobs. The categories of workers, industries, and jobs referred to shall be determined by a decision of the Minister.

Article One Hundred

An employer may, with the approval of the Ministry, in establishments where the nature of the work requires performance in shifts, increase the working hours beyond eight hours a day or forty-eight hours a week, provided that the average working hours when calculated for a period of three weeks or less do not exceed eight hours per day or forty-eight hours per week.

Article One Hundred and One

Article Amendments Working hours and rest periods during the day shall be organized so that no worker works for more than five consecutive hours without a period for rest, prayer, and food of not less than half an hour at a time during the total working hours, and so that the worker does not remain in the workplace for more than eleven hours in one day.

Article One Hundred and Two

The periods designated for rest, prayer, and food are not included in the actual working hours, and the worker is not under the authority of the employer during these periods. The employer may not compel the worker to remain in the workplace during them.

Article One Hundred and Three

The Minister may, by a decision from him, specify the cases and jobs in which work must continue without a rest period for technical reasons or operating conditions. In these cases and

jobs, the employer is obliged to give a period for prayer, food, and rest in a manner organized by the establishment's management during work.

Article One Hundred and Four

1. Friday is the weekly rest day for all workers. An employer may, after notifying the competent Labor Office, replace this day for some of his workers with any day of the week, and he must enable them to perform their religious duties. The weekly rest day may not be compensated with a cash payment.
2. The weekly rest day shall be with full pay and shall not be less than twenty-four consecutive hours.

Article One Hundred and Five

Notwithstanding the provision of Article One Hundred and Four of this Law, in places far from urban areas and in jobs where the nature of the work and operating conditions require continuous work, the weekly rest days due to the worker may be accumulated for a period not exceeding eight weeks if the employer and the workers agree and the Ministry approves. In calculating the period of the accumulated weekly rest, it shall be taken into account that it begins from the hour of the workers' arrival in the nearest city with means of transport, and ends at the hour of their return to it.

Article One Hundred and Six

An employer may not adhere to the provisions of Articles Ninety-Eight, One Hundred and One, and paragraph (1) of Article One Hundred and Four of this Law in the following cases:

1. Annual inventory work, preparation of the budget, liquidation, closing of accounts, preparation for sales at reduced prices, and preparation for seasons, provided that the number of days in which the workers are employed does not exceed thirty days in a year.
2. If the work is to prevent a dangerous accident, repair what resulted from it, or avoid a certain loss of perishable materials.
3. If the operation is intended to meet unusual work pressure.
4. Holidays, seasons, other occasions, and seasonal work determined by a decision of the Minister. In all the preceding cases, the actual working hours may not exceed ten hours in a day, or sixty hours in a week. The Minister shall, by a decision from him, determine the maximum number of overtime hours permitted in a year.

Article One Hundred and Seven

Article Amendments

1. The employer must pay the worker an additional wage for overtime hours equivalent to the hourly wage plus 50% of his basic wage.

2. If the operation in the establishment is based on the weekly standard for working hours, the hours that exceed the hours taken for this standard are considered overtime hours.
3. All hours of work performed on holidays and festivals are considered overtime hours.

Article One Hundred and Eight

The provisions of Articles Ninety-Eight and One Hundred and One of this Law shall not apply to the following cases:

1. Persons holding high positions of responsibility in management and direction, if such positions entail that their occupants enjoy the employer's authority over the workers.
2. Preparatory or complementary work that must be completed before or after the start of work.
3. Work that is necessarily intermittent.
4. Workers assigned to guarding and cleaning, except for civil security guards. The Regulations shall specify the jobs indicated in paragraphs 2, 3, and 4 of this Article and the maximum working hours therein.

Article One Hundred and Nine

1. A worker is entitled to an annual leave for each year of not less than twenty-one days, to be increased to a period of not less than thirty days if the worker has spent five continuous years in the service of the employer. The leave shall be with pay paid in advance.
2. The worker must enjoy his leave in the year it is due. It is not permissible to waive it, or to receive a cash allowance in lieu of taking it during his service. The employer may set the dates of these leaves according to the requirements of the work, or grant them on a rotating basis to ensure the progress of his work. He must notify the worker of the specified date for his enjoyment of the leave a sufficient time in advance, not less than thirty days.

Article One Hundred and Ten

1. A worker may, with the employer's approval, postpone his annual leave or days thereof to the following year.
2. The employer has the right to postpone the worker's leave after the end of its due year if work circumstances so require for a period not exceeding ninety days. If work circumstances require the continuation of the postponement, the worker's written consent must be obtained, provided that the postponement does not exceed the end of the year following the year the leave is due.

Article One Hundred and Eleven

A worker has the right to receive payment for the days of leave due to him if he leaves the work before using it, with respect to the period for which he has not taken his leave. He is also entitled to leave pay for parts of the year in proportion to the time he spent at work.

Article One Hundred and Twelve

Every worker has the right to leave with full pay on holidays and occasions specified by the Regulations.

Article One Hundred and Thirteen

Article Amendments A worker has the right to a paid leave of one day in the event of the birth of a child to him, and three days for the occasion of his marriage, or in the event of the death of his spouse or one of his ascendants or descendants. The employer has the right to request documents supporting the cases referred to.

Article One Hundred and Fourteen

A worker has the right to obtain a paid leave of not less than ten days and not more than fifteen days, including the Eid al-Adha holiday, to perform the Hajj pilgrimage once throughout his service if he has not performed it before. It is a condition for entitlement to this leave that the worker has spent at least two continuous years in the service of the employer. The employer may determine the number of workers who are granted this leave annually according to the requirements of the work.

Article One Hundred and Fifteen

Article Amendments A worker affiliated with an educational institution has the right to a fully paid leave to take an examination for a non-repeated year, the duration of which is determined by the number of actual examination days. However, if the examination is for a repeated year, the worker has the right to an unpaid leave to take the examination. The employer may ask the worker to provide documents supporting the leave request, as well as proof of his taking the examination. The worker must apply for the leave at least fifteen days before its date. The worker shall be deprived of the pay for this leave if it is proven that he did not take the examination, without prejudice to disciplinary action.

Article One Hundred and Sixteen

A worker may, with the employer's approval, obtain an unpaid leave, the duration of which is agreed upon by the two parties. The work contract is considered suspended during the period of the leave that exceeds twenty days, unless the two parties agree otherwise.

Article One Hundred and Seventeen

A worker who proves his illness has the right to a sick leave with pay for the first thirty days, with three-quarters of the pay for the following sixty days, and without pay for the thirty days that follow that during a single year, whether these leaves are continuous or intermittent. A single year means the year that begins from the date of the first sick leave.

Article One Hundred and Eighteen

A worker may not, while enjoying any of his leaves provided for in this Chapter, work for another employer. If the employer proves that the worker has violated this, he may deprive him of his pay for the duration of the leave or recover what he has already paid him of that pay.

Chapter Seven: Part-Time Work

Article One Hundred and Nineteen

Full-time workers who are affected by a collective and temporary reduction in their normal working hours for economic, technical, or structural reasons are not considered part-time workers.

Article One Hundred and Twenty

The Minister shall issue the necessary rules and regulations to organize part-time work, in which he shall specify the obligations of both the part-time worker and the employer. The provisions of this Law shall not apply except to the extent determined by the Minister, with the exception of the protection granted to similar full-time workers in terms of occupational safety and health and work injuries.

Chapter Eight: Prevention of Occupational Hazards, Prevention of Major Industrial Accidents, Work Injuries, and Health and Social Services

Article One Hundred and Twenty-One

The employer must keep the establishment in a healthy and clean condition, light it, provide safe drinking and washing water, and other rules, procedures, and levels of protection, safety, and occupational health in accordance with what the Minister determines by a decision from him.

Article One Hundred and Twenty-Two

Every employer must take the necessary precautions to protect workers from the dangers and diseases resulting from the work and the machines used, and to protect and ensure the safety of the work. He must post in a visible place in the establishment the instructions concerning the safety of the work and the workers, in Arabic and in any other language understood by the workers when necessary. The employer may not charge the workers or deduct from their wages any amount for providing this protection.

Article One Hundred and Twenty-Three

The employer must inform the worker, before starting the work, of the risks of his profession, and oblige him to use the prescribed means of protection for it. He must provide suitable personal protective equipment for the workers and train them on its use.

Article One Hundred and Twenty-Four

The worker must use the protective means designated for each operation, maintain them, and implement the instructions established to preserve his health and protect him from injuries and diseases. He must refrain from committing any act or omission that causes the non-implementation of the instructions, or the misuse or disabling of the means prepared to protect the workplace and the health and safety of the workers working with him.

Article One Hundred and Twenty-Five

The employer must take the necessary precautions for fire prevention and prepare the technical means to combat it, including securing escape routes and making them usable at any time, and must post in a visible place in the workplaces detailed instructions regarding fire prevention measures.

Article One Hundred and Twenty-Six

The employer is responsible for emergencies and accidents that affect persons other than his workers, who enter the workplaces by virtue of their job, or with the approval of the employer or his agents, if they are due to negligence in taking the technical precautions required by the type of his work. He must compensate them for the disability and damage they suffer according to the general regulations.

Article One Hundred and Twenty-Seven

The provisions of this Chapter shall apply to major hazard establishments.

Article One Hundred and Twenty-Eight

1. The phrase (Major Hazard Establishment) means: an establishment that permanently or temporarily produces, processes, disposes of, handles, uses, or stores one or more hazardous substances or categories of these substances in quantities exceeding the permissible standards, the exceeding of which leads to the inclusion of the establishment among major hazard establishments.
2. The phrase (Hazardous Substance) means: any substance or mixture of substances that poses a hazard by virtue of its chemical, physical, or toxic properties, either alone or in combination with others.
3. The phrase (Major Accident) means: any sudden event such as a major leak, fire, or explosion in the course of an activity within a major hazard establishment, involving one

or more hazardous substances, and leading to a greater danger to workers, the public, or the environment, whether immediately or in the long term.

Article One Hundred and Twenty-Nine

The Ministry shall establish controls to identify (Major Hazard Establishments) based on the list of hazardous substances, or categories of these substances, or both.

Article One Hundred and Thirty

Employers shall, in coordination with the Ministry, determine the status of their establishments on the basis of the controls referred to in Article One Hundred and Twenty-Nine of this Law.

Article One Hundred and Thirty-One

Article Amendments The Minister shall issue the regulations and decisions that include the necessary arrangements at the establishment level for the prevention of major hazards, and the duties of employers in this regard, as well as the arrangements taken to protect the public and the environment outside the site of each major hazard establishment, the rights and duties of workers, and other necessary measures to prevent major accidents, reduce the risks of their occurrence, and limit their effects.

Article One Hundred and Thirty-Two

The provisions of this Chapter shall not apply to establishments that are subject to the occupational hazards branch of the Social Insurance Law.

Article One Hundred and Thirty-Three

If a worker suffers a work injury or an occupational disease, the employer is obliged to treat him and bear all the necessary expenses for that, directly or indirectly, including hospitalization, medical examinations and tests, X-rays, prosthetic devices, and transportation expenses to the places of treatment.

Article One Hundred and Thirty-Four

An injury is considered a work injury as provided for in the Social Insurance Law. Occupational diseases are considered as work injuries, and the date of the first medical observation of the disease is considered as the date of the injury.

Article One Hundred and Thirty-Five

A relapse or any complication arising from it is considered as part of the injury, and the provisions regarding aid and treatment that apply to the original injury shall apply to it.

Article One Hundred and Thirty-Six

Occupational diseases are determined according to the schedule of occupational diseases provided for in the Social Insurance Law, and the degrees of permanent total or partial disability are determined according to the schedule of the disability percentage guide provided for in the said Law.

Article One Hundred and Thirty-Seven

Article Amendments In the case of temporary disability resulting from a work injury, the injured person has the right to a financial aid equivalent to his full wage for a period of thirty days, then he is entitled to 75% of his wage throughout the period of his treatment. If it reaches one year or it is medically decided that his recovery is unlikely and his health condition does not enable him to work, the injury is considered a total disability, the contract is terminated, and he is compensated for the injury. The employer has no right to recover what he paid to the injured person during that year.

Article One Hundred and Thirty-Eight

If the injury results in a permanent total disability, or if the injury leads to the death of the injured person, the injured person or his beneficiaries have the right to a compensation estimated at the equivalent of his wage for a period of three years, with a minimum of fifty-four thousand riyals. However, if the injury results in a permanent partial disability, the injured person is entitled to a compensation equivalent to the percentage of that estimated disability, according to the approved disability percentage guide schedule, multiplied by the value of the permanent total disability compensation.

Article One Hundred and Thirty-Nine

The employer is not bound by what is stated in Articles One Hundred and Thirty-Three, One Hundred and Thirty-Seven, and One Hundred and Thirty-Eight of this Law if any of the following is proven:

1. That the worker intentionally injured himself.
2. That the injury occurred due to intentional misconduct on the part of the worker.
3. That the worker refused to present himself to a doctor, or refused to accept the treatment of the doctor assigned to treat him by the employer without a legitimate reason.

Article One Hundred and Forty

The responsibility of previous employers for whom the worker suffering from an occupational disease worked shall be determined in light of the medical report of the treating physician. These employers are obliged to pay the compensation provided for in Article One Hundred and Thirty-Eight of this Law, each in proportion to the period the injured person spent in his service,

provided that the industries or professions they practice are among those that cause the disease from which the worker suffered.

Article One Hundred and Forty-One

The procedures for reporting work injuries shall be determined by a decision of the Minister.

Article One Hundred and Forty-Two

Every employer must prepare one or more first-aid kits, equipped with medicines and other necessary items for primary medical first aid. The Regulations shall specify what these kits must contain in terms of first-aid supplies and their number, quantities of medicines, as well as the organization of their storage methods, and the conditions and level of the person who performs the first-aid task.

Article One Hundred and Forty-Three

Every employer must assign one or more physicians to conduct a comprehensive examination at least once a year of his workers who are exposed to the possibility of contracting one of the occupational diseases specified in the schedules of occupational diseases—provided for in the Social Insurance Law—and to record the result of that examination in his records, as well as in the files of those workers.

Article One Hundred and Forty-Four

The employer must provide his workers with preventive and curative health care according to the levels determined by the Minister, taking into account what is provided by the Cooperative Health Insurance Law.

Article One Hundred and Forty-Five

An employer may, after the approval of the Minister, establish a savings and thrift fund, provided that the workers' contribution to it is voluntary. The provisions regulating everything related to the rules of operation of this fund must be announced.

Article One Hundred and Forty-Six

The employer is obliged, at his own expense, with respect to those who perform work in places far from urban areas, to provide all or some of the following, according to what the Minister determines:

1. Providing shops to sell food, clothing, and other necessary items at moderate prices, in work areas where such shops are not usually available.
2. Providing suitable recreational and educational facilities and sports fields attached to the workplaces.

3. Making the necessary medical arrangements to maintain the health of the workers and to provide comprehensive treatment for their families. (Family means: the spouse, children, and the mother and father residing with him).
4. Providing schools for the education of the workers' children if there are not enough schools in the area.
5. Preparing mosques or prayer rooms in the workplaces.
6. Preparing literacy programs among the workers. The Regulations shall specify the places far from urban areas.

Article One Hundred and Forty-Seven

An employer who performs work in places far from urban areas, and in mines, quarries, and oil exploration centers, is obliged to provide housing, camps, and meals for the workers. The Minister shall, by a decision from him, determine the conditions and specifications of the housing and camps and the fee for using the housing, as well as the number of meals, the quantities and types of food and the necessary conditions for them, what the worker bears for the meal, and other things necessary to maintain the health of the workers.

Article One Hundred and Forty-Eight

Every employer must provide his workers with means of transportation from their place of residence, or from a specific gathering center, to the workplaces, and return them daily if these places are not reached by regular means of transport at times compatible with the work schedule.

Chapter Nine: Employment of Women

Article One Hundred and Forty-Nine

Article Amendments Taking into account what is stated in Article Four of this Law, a woman shall work in all fields that are compatible with her nature. It is prohibited to employ her in hazardous jobs or harmful industries. The Minister shall, by a decision from him, determine the professions and jobs that are considered harmful to health, or that would expose women to specific dangers, which necessitates prohibiting their work in them or restricting it with special conditions.

Article One Hundred and Fifty

Article Amendments It is not permissible to employ women during a period of the night of not less than eleven consecutive hours, except in cases for which a decision is issued by the Minister.

Article One Hundred and Fifty-One

Article Amendments A working woman has the right to a maternity leave for the four weeks preceding the probable date of delivery and the six weeks following it. The probable date of delivery shall be determined by the establishment's physician or by a medical certificate certified by a health authority. It is prohibited to employ a woman during the six weeks immediately following delivery.

Article One Hundred and Fifty-Two

Article Amendments The employer must pay the working woman during her absence from work on maternity leave the equivalent of half her wage if she has one year or more of service with the employer, and the full wage if her period of service reaches three years or more on the day the leave begins. She shall not be paid the wage during her ordinary annual leave if she has benefited in the same year from a maternity leave with full pay, and she shall be paid half her wage during the annual leave if she has benefited in the same year from a maternity leave with half pay.

Article One Hundred and Fifty-Three

The employer must provide medical care for the working woman during pregnancy and childbirth.

Article One Hundred and Fifty-Four

A working woman has the right, when she returns to her work after maternity leave, to take a period or periods of rest for the purpose of nursing her newborn, not exceeding a total of one hour per day, in addition to the rest periods granted to all workers. This period or periods shall be counted as actual working hours and shall not result in a reduction of wages.

Article One Hundred and Fifty-Five

Article Amendments An employer may not dismiss a female worker or give her notice of dismissal while she is on maternity leave.

Article One Hundred and Fifty-Six

Article Amendments An employer may not dismiss a female worker during a period of illness resulting from pregnancy or childbirth, and the illness shall be proven by a certified medical certificate, provided that the duration of her absence does not exceed one hundred and eighty days. She may not be dismissed without a legitimate reason from the reasons provided for in this Law during the one hundred and eighty days preceding the probable date of delivery.

Article One Hundred and Fifty-Seven

A female worker forfeits her right to what she is entitled to according to the provisions of this Chapter if she works for another employer during the period of her authorized leave. The

original employer, in this case, may deprive her of her wage for the duration of the leave, or recover what he has paid her.

Article One Hundred and Fifty-Eight

In all places where women work and in all professions, the employer must provide them with seats to ensure their rest.

Article One Hundred and Fifty-Nine

1. Every employer who employs fifty or more female workers must prepare a suitable place with a sufficient number of nannies to care for the children of the female workers who are under six years of age, if the number of children reaches ten or more.
2. The Minister may require an employer who employs one hundred or more female workers in one city to establish a nursery himself or in partnership with other employers in the same city, or to contract with an existing nursery to care for the children of female workers who are under six years of age during work periods. In this case, the Minister shall determine the conditions and regulations that govern this nursery, and shall also decide the percentage of costs to be imposed on the female workers benefiting from this service.

Article One Hundred and Sixty

Article Amendments A working woman whose husband dies has the right to a fully paid leave for a period of not less than fifteen days from the date of death.

Chapter Ten: Employment of Juveniles

Article One Hundred and Sixty-One

It is not permissible to employ juveniles in hazardous jobs or harmful industries, or in professions and jobs that are likely to endanger their health, safety, or morals, due to their nature or the circumstances in which they are performed. The Minister shall, by a decision from him, specify the jobs, industries, and professions referred to.

Article One Hundred and Sixty-Two

1. It is not permissible to employ any person who has not completed the age of fifteen, nor shall he be allowed to enter workplaces. The Minister may raise this age in certain industries or regions or for certain categories of juveniles by a decision from him.
2. Notwithstanding paragraph (1) of this Article, the Minister may permit the employment or work of persons between the ages of 13 and 15 in light work, in which the following shall be observed: 2/1. That it is not likely to be harmful to their health or growth. 2/2. That it does not disrupt their attendance at school and their participation in vocational guidance or training programs, nor weaken their ability to benefit from the education they receive.

Article One Hundred and Sixty-Three

It is prohibited to employ juveniles during a period of the night of not less than twelve consecutive hours, except in cases determined by the Minister by a decision from him.

Article One Hundred and Sixty-Four

Juveniles may not be actually employed for more than six hours in one day for all months of the year, except for the month of Ramadan, in which the actual working hours must not exceed four hours. Working hours shall be organized so that a juvenile does not work for more than four consecutive hours without one or more periods for rest, food, and prayer, not less than half an hour at a time, and so that he does not remain in the workplace for more than seven hours. It is not permissible to employ juveniles on weekly rest days or on official holidays and vacations and annual leave. The exceptions provided for in Article One Hundred and Six of this Law shall not apply to them.

Article One Hundred and Sixty-Five

Before employing a juvenile, the employer must obtain from him the following documents:

1. The national identity card or an official birth certificate.
2. A certificate of medical fitness for the required work issued by a specialized physician and certified by a health authority.
3. The consent of the juvenile's guardian. These documents must be kept in the juvenile's special file.

Article One Hundred and Sixty-Six

The employer must notify the competent Labor Office of every juvenile he employs within the first week of his employment, and must keep at the workplace a special register for juvenile workers showing the juvenile's name, age, the full name of his guardian, his place of residence, and the date of his employment.

Article One Hundred and Sixty-Seven

The provisions of this Chapter shall not apply to work performed by children and juveniles in schools for the purposes of general, vocational, or technical education, and in other training institutions. They shall also not apply to work performed in establishments by persons who have reached the age of at least fourteen years if this work is carried out in accordance with conditions determined by the Minister, and the work constitutes an essential part of the following:

1. An educational or training course for which a school or training institution has primary responsibility.
2. A training program, the greater part or all of which is carried out in an establishment, if the competent authority has approved it.

3. A guidance or orientation program aimed at facilitating the choice of a profession or type of training.

Chapter Eleven: Maritime Work Contract

Article One Hundred and Sixty-Eight

Article Amendments The following words and phrases, wherever they appear in this Chapter, shall have the meanings indicated opposite them, unless the context requires otherwise:

Vessel: Any floating facility registered in the Kingdom of Saudi Arabia with a tonnage of not less than five hundred tons. **Vessel Outfitter:** Any natural person, or public or private establishment, for whose account the vessel is outfitted. **Captain:** Any seaman qualified to command a vessel and assume responsibility for it. **Seaman:** Any person who works on board a vessel under a maritime work contract. **Maritime Work Contract:** Any contract of employment for a wage concluded between a vessel owner or a vessel outfitter or a representative of either of them and a seaman to work on board it. The provisions of this Law shall apply to this contract in a manner that does not conflict with the provisions of this Chapter and the decisions issued pursuant to it.

Article One Hundred and Sixty-Nine

All who work on board the vessel are subject to the authority and orders of its captain.

Article One Hundred and Seventy

All work contracts of the seamen working on the vessel must be recorded in the vessel's logs or attached to them, and these contracts must be written in a clear format. The contract must state whether it is for a fixed term or for a voyage. If it is for a fixed term, the term must be clearly specified. If it is for a voyage, the city or seaport where the voyage ends must be specified, and at which stage of unloading or loading the vessel in this port the contract ends.

Article One Hundred and Seventy-One

The maritime work contract must state its date and place of conclusion, the name of the outfitter, the name, surname, age, nationality, and domicile of the seaman, the type of work assigned to him and how it is to be performed, the certificate that allows him to work in maritime navigation, the seaman's personal identity card, the amount of the wage, and the duration of the contract. If the contract is for a single voyage, the city or seaport where the journey ends must be specified, and at which stage of unloading or loading the vessel in this port the work ends, and other details of the contract. The contract shall be in three copies: one copy for the vessel outfitter, one copy for the captain to be kept on board the vessel, and one copy for the seaman.

Article One Hundred and Seventy-Two

The rules and conditions of work on board the vessel must be posted on the vessel and in the section designated for the workers. The rules and conditions must include the following:

1. The obligations and duties of the seamen, the rules for organizing work on board the vessel, the service schedules, and the daily working hours.
2. The duties of the vessel outfitter towards the seamen, in terms of fixed wages, bonuses, and other types of wages.
3. How to suspend or deduct from wages, and how to pay advances on wages.
4. The place and time of wage settlement, and its final calculation.
5. The rules and principles for providing food and lodging on board the vessel.
6. Treatment of seamen's illnesses and injuries.
7. The conduct of seamen and the conditions for their repatriation to their country.
8. The seamen's paid annual leave.
9. The end-of-service award and other compensations to be paid upon the termination or expiration of the work contract.

Article One Hundred and Seventy-Three

A person working as a seaman must meet the following conditions:

1. To have completed eighteen years of age.
2. To hold a certificate that allows him to work in maritime service.
3. To be medically fit.

Article One Hundred and Seventy-Four

All of the seaman's entitlements shall be paid in the official currency. They may be paid in foreign currency if they become due while the vessel is outside territorial waters and the seaman accepts that. The seaman may request the employer to pay his due cash wage to a person he designates.

Article One Hundred and Seventy-Five

If the voyage is shortened for any reason, whether voluntary or compulsory, this shall not result in a reduction of the wage of a seaman employed under a maritime work contract for a single sea journey.

Article One Hundred and Seventy-Six

If the wage is determined as a share of the profits or the vessel's freight, the seaman is not entitled to compensation if the journey is cancelled, nor to an increase in wage if the journey is delayed or extended. However, if the delay or extension is due to the act of the shippers, the seaman is entitled to compensation from the outfitter.

Article One Hundred and Seventy-Seven

A seaman is entitled to his wage if the vessel is captured, sinks, or becomes unseaworthy, up to the day of the incident.

Article One Hundred and Seventy-Eight

Article Amendments The food and lodging of the seamen are at the expense of the vessel outfitter, and this shall be regulated by a decision issued by the Minister.

Article One Hundred and Seventy-Nine

Working hours on board the vessel while at sea shall not exceed fourteen hours in a twenty-four-hour period, nor seventy-two hours in a seven-day period.

Article One Hundred and Eighty

Every seaman who has contributed to assisting or salvaging another vessel has a share in the reward due to the vessel on which he works, regardless of the type of wage for the work he performs.

Article One Hundred and Eighty-One

If a seaman dies during the voyage, his heirs have the right to receive his wage up to the day of his death if the wage is by the month. However, if his wage is calculated by the voyage, the heirs have the right to receive his wage for the entire voyage. If the wage is a share in the profits, it is due in full. The amounts due to the deceased, missing, or unable-to-receive seaman shall be deposited with the Labor Office in the port of arrival in the Kingdom.

Article One Hundred and Eighty-Two

Article Amendments The employer may terminate the contract without prior notice and without compensation in the following cases:

1. If the vessel sinks, is confiscated, is lost, or becomes unusable.
2. If the voyage is cancelled at its beginning for a reason beyond the vessel outfitter's control, and the wage is on the basis of a single voyage, unless the contract provides otherwise.

Article One Hundred and Eighty-Three

In the event of the expiration or termination of the contract, the employer is obliged to do the following:

1. To return the seaman to the port from which he departed at the start of the contract's execution.
2. To provide for his food and lodging until he reaches that port.

Article One Hundred and Eighty-Four

The outfitter is obliged to repatriate the seaman to his country in the following cases:

1. If the voyage is cancelled by the act of the vessel outfitter after the vessel has set sail.
2. If the voyage is cancelled after the vessel has sailed, due to a prohibition of trade with the destination for which it was bound.
3. If the seaman is removed from the vessel due to illness, injury, or infirmity.
4. If the vessel is sold in a foreign country.
5. If the seaman is dismissed from service during the voyage without a legitimate statutory reason.
6. If the contract concluded with the seaman expires in a port other than the port specified in the contract.

Chapter Twelve: Work in Mines and Quarries

Article One Hundred and Eighty-Five

Work in mines and quarries means the following:

1. Operations related to the search for or discovery of mineral substances, including precious stones, or their extraction or processing in the licensed area, whether the minerals are solid or liquid.
2. Operations related to the extraction, concentration, or processing of mineral deposits on the surface of the earth or in its subsoil in the licensed area.
3. Construction works and the installation of structures and equipment that are ancillary to the operations mentioned in paragraphs 1 and 2 of this Article.

Article One Hundred and Eighty-Six

Article Amendments It is not permissible to employ any person in a mine or quarry who has not completed the age of eighteen, and it is not permissible to employ a woman of any age in any mine or quarry.

Article One Hundred and Eighty-Seven

No person shall be allowed to work in the operations to which this Chapter applies except after undergoing a complete medical examination and being proven medically fit for the required work. This examination must be repeated periodically, and the worker shall not be charged any expense for the necessary medical examinations. The Minister shall, by a decision from him, specify the conditions, terms, and periods that must be adhered to.

Article One Hundred and Eighty-Eight

The actual working hours spent by a worker underground shall not exceed seven hours per day. A worker may not be kept in the workplace, whether above or below ground, for a period exceeding ten hours per day. If the work is underground, this period includes the time it takes

for the worker to reach the workplace from the surface and the time it takes for him to return from underground to the surface.

Article One Hundred and Eighty-Nine

Entry to workplaces and their annexes is prohibited for persons other than the workers therein, those assigned to inspect the mine or quarry, and persons holding a special permit from the competent authority.

Article One Hundred and Ninety

The employer must prepare a special register to record and count the workers before they enter the workplaces and upon their exit from them.

Article One Hundred and Ninety-One

The employer or the responsible manager must establish a regulation of orders and instructions related to public safety.

Article One Hundred and Ninety-Two

The employer must establish a rescue point near the workplace equipped with the necessary rescue and first-aid tools. This point must have a suitable means of communication, so that it can be used for assistance immediately. He must also appoint a trained technical worker to supervise rescue and first-aid operations.

Article One Hundred and Ninety-Three

Without prejudice to the provision of Article One Hundred and Forty-Two of this Law, every employer must prepare in every mine or quarry where at least fifty workers are employed a suitable place containing a room equipped with rescue and first-aid supplies, another for nursing, as well as one or more rooms for changing clothes. As for mines and quarries where the number of workers in each is less than fifty and which are located within a radius of twenty kilometers, the employer may participate in establishing a rescue and first-aid place in a central location, or establish an independent rescue and first-aid place. The Minister may specify the means of rescue and first aid, and the measures of prevention and protection in mines and quarries, as well as the responsibilities of employers and the rights and duties of workers.

Chapter Thirteen: Labor Inspection

Article One Hundred and Ninety-Four

Article Amendments Labor inspection shall be undertaken by specialized inspectors appointed by a decision of the Minister, and they shall have the powers and competencies stipulated in this Law.

Article One Hundred and Ninety-Five

Article Amendments In addition to the general conditions for the appointment of employees, a labor inspector, when practicing his work, must meet the following conditions:

1. To be completely impartial.
2. To have no direct or indirect connection with the establishments he inspects.
3. To have passed a professional examination after completing a training period of not less than ninety days.

Article One Hundred and Ninety-Six

Article Amendments Labor inspectors are competent in the following:

1. Monitoring the proper implementation of the provisions of the Labor Law and its implementing regulations and decisions.
2. Providing employers and workers with technical information and guidance that enables them to follow the best means to implement the provisions of the Law.
3. Informing the competent authorities of the shortcomings that the existing provisions fail to address and proposing what is necessary for that.
4. Recording violations of the provisions of the Labor Law and the decisions issued in its application.

Article One Hundred and Ninety-Seven

Article Amendments Before commencing their duties, labor inspectors shall take an oath before the Minister to perform their duties with honesty and sincerity, and not to disclose the secret of any industrial invention or other secrets they become aware of by virtue of their positions, even after they cease to work in these positions. The labor inspector shall carry a card from the Ministry proving his capacity.

Article One Hundred and Ninety-Eight

Article Amendments Labor inspectors have the right to:

1. Enter any establishment subject to the provisions of the Labor Law at any time of the day or night, without prior notice.
2. Carry out any examination or investigation necessary to verify the proper implementation of the Law. In particular, they may: a. Question the employer or his representative, or the workers, individually or in the presence of witnesses, about any matter related to the implementation of the provisions of the Law. b. Inspect all books, records, and other documents required to be kept in accordance with the provisions of this Law and the decisions issued pursuant to it, and obtain copies and extracts thereof. c. Take a sample or samples of the materials used or handled in industrial and other operations subject to inspection, which are suspected of having a harmful effect on the health or safety of

workers, for the purpose of analyzing them in government laboratories and to determine the extent of this effect, while informing the employer or his representative of this.

Article One Hundred and Ninety-Nine

Article Amendments Employers and their agents must provide inspectors and officials in charge of labor inspection with the necessary facilities to perform their duties, provide them with the data they request related to the nature of their work, respond to requests to appear before them, and send a representative on their behalf if requested to do so.

Article Two Hundred

The person conducting the inspection must inform the employer or his representative of his presence, unless he believes that the task for which he is conducting the inspection requires otherwise.

Article Two Hundred and One

The labor inspector has the right to issue instructions to employers to make modifications to the work rules in their equipment and machinery within the deadlines he specifies, in order to ensure compliance with the provisions related to the health and safety of workers. In the event of a danger threatening the health and safety of workers, he may also request the implementation of the procedures he deems necessary to avert this danger immediately.

Article Two Hundred and Two

The labor inspector must treat with absolute confidentiality the complaints that reach him regarding any deficiency in the equipment or any violation of the provisions of the Law, and must not disclose to the employer or his substitute the existence of these complaints.

Article Two Hundred and Three

Article Amendments If the inspector, during the inspection, verifies the existence of a violation of the provisions of this Law or the decisions issued pursuant to it, he may offer advice and guidance to the employer on how to avoid the violation, give a verbal warning, or issue a written warning to rectify the violation within a specific period, or draw up a violation report, depending on the importance of the violation and other circumstances to be assessed by the inspector.

Article Two Hundred and Four

Physicians, engineers, chemists, and specialists in occupational safety and health shall participate in the inspection whenever the need arises. The director of the Labor Office and the inspectors may, when necessary, request the competent executive authorities to provide the necessary assistance.

Article Two Hundred and Five

Article Amendments The head of labor inspection at the Labor Office shall prepare a monthly report on the activity of labor inspection, the aspects of inspection, the establishments that were inspected, the number and type of violations committed, and the measures taken regarding them. He shall also prepare an annual report on the inspection within the jurisdiction of the Labor Office, its results, and its effects, including his observations and proposals. A copy of both reports shall be sent to the Ministry.

Article Two Hundred and Six

Article Amendments The Deputy Minister for Labor Affairs shall submit a comprehensive annual report on labor inspection in the Kingdom, within a period not exceeding one hundred and eighty days from the end of the year, covering everything related to the Ministry's supervision of the implementation of the provisions of the Labor Law. The report shall include, in particular, the following:

1. A statement of the provisions regulating inspection.
2. A statement of the officials competent in inspection.
3. Statistics on the establishments subject to inspection and the number of workers therein.
4. Statistics on the visits and tours of the inspectors.
5. Statistics on the violations that occurred and the penalties imposed.
6. Statistics on work injuries.
7. Statistics on occupational diseases.

Article Two Hundred and Seven

Article Amendments The Ministry shall establish the forms for violation reports, inspection records, warnings, and notices. It shall also establish the necessary provisions for how to keep and use them, and circulate them to the Labor Offices.

Article Two Hundred and Eight

Article Amendments The training of labor inspectors shall be organized in training courses that include, in particular, the following matters:

1. Principles of organizing inspection visits and communicating with employers and workers.
2. Principles of auditing records, books, and computers, and principles of organizing inspection reports and questioning persons.
3. Principles of guiding employers on the requirements of the statutory texts and the benefits of their application, and assisting them in this application.
4. Basic principles in industrial technology, and means of prevention from work injuries and occupational diseases.
5. Basic principles in productivity efficiency, and its connection to the extent of providing suitable conditions for the work environment.

Article Two Hundred and Nine

Article Amendments The Council of Ministers shall issue the implementing regulations for controlling and organizing the inspection works stipulated in this Chapter.

Chapter Fourteen: Commissions for the Settlement of Labor Disputes

Article Two Hundred and Ten

Article Amendments The Commissions for the Settlement of Labor Disputes are:

1. The Preliminary Commissions for the Settlement of Disputes.
2. The High Commission for the Settlement of Disputes.

Article Two Hundred and Eleven

Article Amendments The members of the Preliminary Commissions, who hold a degree in Sharia or Law, shall be appointed by a decision of the Minister after the approval of the President of the Council of Ministers.

Article Two Hundred and Twelve

Article Amendments A Preliminary Commission shall be formed by a decision of the Minister in each Labor Office specified by the Minister, comprising one or more panels of one member each. Each of these panels shall decide on the cases brought before it. If the Commission comprises more than one panel, the Minister shall appoint a chairman from among the members who shall, in addition to his work, distribute the cases among the members of the Commission and organize the administrative and clerical work.

Article Two Hundred and Thirteen

Article Amendments If a Preliminary Commission is not formed in a Labor Office, the Minister shall, when necessary, assign the Commission formed in the nearest Labor Office with the tasks and competencies of the unformed Commission.

Article Two Hundred and Fourteen

Article Amendments The Preliminary Commission shall have jurisdiction over the following:

1. To rule finally on the following: 1/1. Labor disputes of any kind whose value does not exceed ten thousand riyals. 1/2. Objections to the penalty imposed by the employer on the worker. 1/3. Imposing the penalties stipulated in this Law for a violation whose

prescribed penalty does not exceed five thousand riyals, and for violations whose prescribed penalties in total do not exceed five thousand riyals.

2. To rule preliminarily on the following: 2/1. Labor disputes whose value exceeds ten thousand riyals. 2/2. Disputes over compensation for work injuries, regardless of the value of the compensation. 2/3. Disputes over dismissal from work. 2/4. Imposing the penalties stipulated in this Law for a violation whose prescribed penalty exceeds five thousand riyals, and for violations whose prescribed penalties in total exceed five thousand riyals. 2/5. Imposing penalties for violations punishable by a fine with an ancillary penalty.

Article Two Hundred and Fifteen

Article Amendments The High Commission for the Settlement of Disputes shall consist of several panels, with each panel having no fewer than three members. A decision shall be issued by the Council of Ministers, based on the nomination of the Minister, appointing the chairman and members of the Commission from among those holding a degree in Sharia and Law who have experience in the field of labor disputes. The number of panels of the High Commission and their areas of work shall be determined by a decision of the Minister based on the proposal of the chairman of the Commission. The chairman of the Commission shall select the heads of the panels, distribute the work among them, and supervise all matters related to their administrative affairs.

Article Two Hundred and Sixteen

Article Amendments Each panel of the High Commission shall have jurisdiction to rule finally and definitively on all decisions of the panels of the Preliminary Commissions that are appealed before it.

Article Two Hundred and Seventeen

Article Amendments The period for appeal is thirty days from the date of the pronouncement of the Preliminary Panel's decision in decisions rendered in the presence of the parties, and from the date of notification of the decision in other cases.

Article Two Hundred and Eighteen

Article Amendments If the decision of the Preliminary Panel is not appealed within the period specified in the preceding Article, the decision shall be considered final and enforceable. The decisions of the panels of the High Commission shall be enforceable from the date of their issuance.

Article Two Hundred and Nineteen

Article Amendments Each of these Commissions shall have the sole right, to the exclusion of all others, to hear all disputes related to this Law and disputes arising from work contracts. It may summon any person for questioning, or delegate one of its members to conduct this

questioning. It may also compel the submission of documents and evidence, and take other measures it approves. The Commission has the right to enter any place occupied by the establishment for the purpose of conducting an investigation, and to inspect all books, records, and documents it deems necessary to inspect.

Article Two Hundred and Twenty

Article Amendments Lawsuits shall be filed through the competent Labor Office before the Preliminary Commissions in whose location or jurisdiction the workplace is located. The Labor Office must, before referring the dispute to the Commission, take the necessary measures to settle the dispute amicably. The Minister shall issue a decision on the procedures and rules for this.

Article Two Hundred and Twenty-One

Article Amendments Lawsuits arising from the provisions of this Law shall be heard on an expedited basis.

Article Two Hundred and Twenty-Two

Article Amendments

1. No lawsuit concerning a claim for any of the rights provided for in this Law or arising from a work contract shall be accepted before the Commissions stipulated in this Law after the lapse of twelve months from the date of the termination of the work relationship.
2. No lawsuit concerning a claim for any of the rights provided for in the previous Labor Law shall be accepted after the lapse of twelve months from the date this Law comes into force.
3. No complaint about violations committed against the provisions of this Law or the regulations and decisions issued pursuant to it shall be accepted after the lapse of twelve months from the date the violation occurred.

Article Two Hundred and Twenty-Three

Article Amendments No Commission stipulated in this Chapter may refrain from issuing its decision on the pretext that there is no applicable provision in this Law. In this case, it must resort to the principles of Islamic Sharia, established judicial precedents, custom, and the rules of justice.

Article Two Hundred and Twenty-Four

Article Amendments The parties to a work contract may include in it a provision stipulating the settlement of disputes by way of arbitration. They may also agree to this after the dispute has arisen. In all cases, the provisions of the effective Arbitration Law in the Kingdom and its implementing regulations shall apply.

Article Two Hundred and Twenty-Five

Article Amendments Neither of the disputing parties may raise a dispute on which a final decision has been issued by one of the Commissions stipulated in this Chapter before this Commission or any other judicial bodies.

Article Two Hundred and Twenty-Six

Article Amendments An employer may not, during the course of conciliation or arbitration procedures or while the case is being heard before one of the Commissions stipulated in this Chapter, change the conditions of employment that were in effect before the procedures began in a way that would cause harm to the worker.

Article Two Hundred and Twenty-Seven

Article Amendments The Commission may rule that the party who loses the case shall pay to the other party all or part of the expenses he incurred.

Article Two Hundred and Twenty-Eight

Article Amendments The Council of Ministers shall issue the Rules of Procedure before the Commissions for the Settlement of Labor Disputes.

Chapter Fifteen: Penalties

Article Two Hundred and Twenty-Nine

Article Amendments The penalties stipulated in this Chapter shall apply unless there are other more severe penalties provided for in any other law.

(Article Two Hundred and Twenty-Nine bis) Appended to the Article

- This article was added pursuant to Royal Decree No. (M/44) dated 8/2/1446 H, to read as follows: "A fine of not less than (200,000) two hundred thousand riyals and not more than (500,000) five hundred thousand riyals shall be imposed on anyone who violates the provisions of paragraph (1) of Article (Thirty) of this Law, without prejudice to what is stipulated in Article (Two Hundred and Twenty-Nine) thereof."

Article Two Hundred and Thirty

Article Amendments A fine of not less than three thousand riyals and not more than ten thousand riyals shall be imposed on anyone who violates any provision related to the vocational preparation of Saudi workers and their replacement of others as stipulated in this Law and the decisions issued pursuant to it.

Article Two Hundred and Thirty-One

Article Amendments Anyone who violates the provisions of Articles Sixteen, Twenty-Five, Thirty-Three, Thirty-Seven, and Thirty-Eight of this Law shall be punished with a fine of not less than two thousand riyals and not more than five thousand riyals. The fine shall be multiplied by the number of workers in respect of whom the violation was committed.

Article Two Hundred and Thirty-Two

Article Amendments Anyone who violates the provision of Article Thirty of this Law shall be punished with a fine of not less than ten thousand riyals and not more than thirty thousand riyals.

Article Two Hundred and Thirty-Three

Article Amendments Anyone who violates the provision of Article Thirty-Nine of this Law shall be punished with a fine of not less than five thousand riyals and not more than twenty thousand riyals. The fine shall be multiplied by the number of persons in respect of whom the violation was committed, and the worker shall be deported at the expense of the one for whom he was found working.

Article Two Hundred and Thirty-Four

Article Amendments The employer or any person responsible for violating the provisions of Chapter Two, Chapter Three, and Chapter Four of Chapter Six of this Law or any decisions issued pursuant to it shall be punished with a fine of not less than two thousand riyals and not more than five thousand riyals for each violation.

Article Two Hundred and Thirty-Five

Article Amendments An employer who violates the provision of Article Ninety of this Law shall be punished with a fine of not less than five hundred riyals and not more than three thousand riyals. The fine shall be multiplied by the number of workers in respect of whom the violation was committed.

Article Two Hundred and Thirty-Six

Article Amendments Anyone who violates the provisions of Chapter One and Chapter Two of Chapter Eight of this Law and the rules issued in accordance with the provision of Article One Hundred and Twenty-One of this Law shall be punished with a fine of not less than three thousand riyals and not more than ten thousand riyals for each violation, or the closure of the establishment for a period not exceeding thirty days, or its permanent closure. The fine and closure may be combined, with the source of danger being stopped.

Article Two Hundred and Thirty-Seven

Article Amendments Without prejudice to the penalties prescribed by other laws for anyone who prevents an employee from carrying out his duties, anyone who violates the provision of Article One Hundred and Ninety-Nine of this Law shall be punished with a fine of not less than five thousand riyals and not more than ten thousand riyals.

Article Two Hundred and Thirty-Eight

Article Amendments A fine of not less than ten thousand riyals and not more than thirty thousand riyals shall be imposed on any employer, project manager, or worker who refuses or delays the implementation of an arbitration award or any final decision issued by one of the Commissions for the Settlement of Labor Disputes.

Article Two Hundred and Thirty-Nine

Article Amendments Anyone who violates any provision of this Law and the regulations and decisions issued pursuant to it, for which no specific penalty has been provided, shall be punished with a fine of not less than two thousand riyals and not more than five thousand riyals.

(Article Two Hundred and Thirty-One currently) (formerly Article Two Hundred and Forty)

Article Amendments If the violation is repeated within ninety days or if the violator does not correct his violation within the specified period, the fine shall be doubled.

Article Two Hundred and Forty-One

Article Amendments The violator may, in all cases, pay the fine prescribed in this Chapter at its maximum limit without resorting to the Commission for the Settlement of Labor Disputes.

(Article Two Hundred and Thirty-Two currently) (formerly Article Two Hundred and Forty-Two)

Article Amendments The amounts of fines imposed for violating the provisions of this Law and the regulations and decisions issued pursuant to it shall be transferred to the Human Resources Development Fund.

Article Two Hundred and Thirty-Three

Appended to the Article

- This article was added pursuant to Royal Decree No. (M/46) dated 5/6/1436 H, to read as follows:

"The Minister may grant a financial reward not exceeding 25% of the amount of the collected fine to anyone, whether an inspection official or otherwise, who assists in uncovering any of the violations of the provisions of this Law, its regulations, and the decisions issued in its implementation."

Article Two Hundred and Thirty-Four

Appended to the Article

- An article bearing the number (Two Hundred and Thirty-Four) is added, with the text as follows: "a- No lawsuit concerning a claim for any of the rights provided for in this Law or arising from a work contract shall be accepted before the labor courts after the lapse of twelve months from the date of the termination of the work relationship, unless the plaintiff provides an excuse accepted by the court, or the defendant issues an admission of the right. b- Labor lawsuits shall be heard on an expedited basis." This article was added pursuant to Royal Decree No. (M/14) dated 22/2/1440 H.

Article Two Hundred and Thirty-Five

Appended to the Article

- An article bearing the number (Two Hundred and Thirty-Five) is added, with the text as follows: "An employer may not, while the case is being heard before the labor courts, change the conditions of employment that were in effect before the procedures began, in a way that would be detrimental to the worker's position in the lawsuit." This article was added pursuant to Royal Decree No. (M/14) dated 22/2/1440 H.

Chapter Sixteen: Final Provisions

Article Two Hundred and Forty-Three

The Minister shall issue the necessary decisions and regulations for the implementation of the provisions of this Law within one hundred and eighty days from the date this Law comes into force. The implementing regulations shall be published in the Official Gazette.

Article Two Hundred and Forty-Four

This Law replaces the Labor and Workmen Law, issued by Royal Decree No. (M/21) dated 6/9/1389 H, and repeals all provisions that conflict with it. The regulations and decisions issued before the entry into force of this Law shall remain in effect until they are amended.

Article Two Hundred and Forty-Five

This Law shall be published in the Official Gazette and shall come into force one hundred and eighty days after the date of its publication.